

PETITION - NONCONVICTION PETITION UNDER Sec. 99-19-71(4)

IN THE COURT

(the Mississippi intervention court that certified completion and entered the dismissal)

IN RE: Maria-Alejandra O'Shaughnessy-Whitfield,
PETITIONER.

Case number, if the court assigns one at filing:

.....

NONCONVICTION PETITION UNDER Sec. 99-19-71(4)

A. WHAT THE COMMITTED RECORD ESTABLISHES ABOUT THIS ROUTE

This petition is brought on the route the committed route contract records as "Intervention-court completion - dismissal-only branch where a record remains", under Miss. Code Ann. Sec. 99-19-71(4).

The compiled Mississippi profile records the substance of this route as follows. The compiled profile records, of the provision that appears in both Sec. 99-15-26(5) and Sec. 99-19-71(4): "Upon petition, the court shall expunge a case where an arrest was made, the person was released, and the case was dismissed, the charges were dropped, there was no disposition, or the person was found not guilty at trial. This appears in both 99-15-26(5) and 99-19-71(4)."

The committed contract records the timing of this route as: relief opens on the dismissal following court-certified completion, where a record remains.

The committed contract records these conditions on the route: Successful completion required; No implied-consent expunction; Sentenced-at-plea matters belong on the automatic branch.

B. THE PETITIONER

Name: Maria-Alejandra O'Shaughnessy-Whitfield

Date of birth: 1968-12-31

C. THE FACTS OF THIS MATTER, WHICH THE PETITIONER SUPPLIES FROM THE RECORD

Each item below is printed in the words the committed record uses for it. Fill each one from the record itself, never from memory.

[C1 - which intervention court] Which intervention court?

.....

.....

[C2 - was a sentence imposed at the plea] Was a sentence imposed at the plea?

.....
.....

[C3 - was the case dismissed rather than sentenced] Was the case dismissed rather than sentenced?

.....
.....

[C4 - was every requirement completed] Was every requirement completed?

.....
.....

[C5 - were fees paid or waived] Were fees paid or waived?

.....
.....

[C6 - does a record still remain] Does a record still remain?

.....
.....

D. THE REQUEST

The petitioner asks the Court to expunge the record that remains after the dismissal described above, under Miss. Code Ann. Sec. 99-19-71(4).

DATE SIGNATURE OF PETITIONER

(The petitioner signs and dates this petition personally. Nothing on this page is signed or dated for the petitioner.)

PRINTED NAME: Maria-Alejandra O'Shaughnessy-Whitfield

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39501-2214

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Route:

obligation:runtime-only:MS:intervention-court-dismissal-only-nonconviction-expungement-99-19-71-4

PROPOSED ORDER - NONCONVICTION PETITION UNDER Sec. 99-19-71(4)

IN THE COURT

(the Mississippi intervention court that certified completion and entered the dismissal)

IN RE: Maria-Alejandra O'Shaughnessy-Whitfield,
PETITIONER.

Case number, if one was assigned:

.....

PROPOSED ORDER

This matter came before the Court on the petition of the petitioner under Miss. Code Ann. Sec. 99-19-71(4). The Court, having considered the petition and anything filed with it,

ORDERS that

(EVERY DECISION ON THIS PAGE IS THE COURT'S. This proposed order travels with the petition for the Court's convenience; nothing on it is completed, decided, signed or dated by the petitioner or by this packet.)

DATED

.....

(The court signs here if, and only if, it grants the petition.)

Route:

obligation:runtime-only:MS:intervention-court-dismissal-only-nonconviction-expungement-99-19-71-4

FILING INSTRUCTIONS - NONCONVICTION PETITION UNDER Sec. 99-19-71(4)

This page is for Maria-Alejandra O'Shaughnessy-Whitfield.

FILING INSTRUCTIONS - NONCONVICTION PETITION UNDER Sec. 99-19-71(4)

WHAT THIS ROUTE IS, AND WHO RUNS IT

The committed route contract records this route as "Intervention-court completion - dismissal-only branch where a record remains", under Miss. Code Ann. Sec. 99-19-71(4), with outcome mode "participant_packet".

The committed contract names the packet components for this route as: Petition under Sec. 99-19-71(4); Dismissal order; Proposed order. This packet composes the filing pages; anything on that list that is a RECORD rather than a pleading is a document you obtain and file with the petition.

Who runs it: The participant petitions and the intervention court decides. The committed contract records this as the DISMISSAL-ONLY branch, and records the boundary in terms: 'Sentenced-at-plea matters belong on the automatic branch.' If a sentence was imposed at your plea, this is not your route and nothing here is your instrument.

WHAT YOU DO

- Confirm the branch: completion was certified, the case was DISMISSED rather than sentenced, and a record still remains.
- Obtain the dismissal order; the committed contract names it as a component of this packet.
- Fill every labelled item from the court record, sign and date the petition personally, and file it with the proposed order.

WHAT YOU DO NOT DO

- Do not use this packet if a sentence was imposed at the plea. The committed contract records that those matters belong on the automatic branch.
- Do not use it for an implied-consent matter. The committed contract records 'No implied-consent expunction' as a condition of this route.
- Do not sign the proposed order. Every decision on it is the court's.

WHAT IT COSTS, AND WHETHER A WAIVER EXISTS

No committed record this packet binds states a filing fee, or a fee waiver, for this route. The office that answers both is the clerk's office of the Mississippi intervention court that certified completion and entered the dismissal. Ask before you go, because a filing you cannot pay for is a filing you cannot make.

WHO MUST BE SERVED, AND WHO IS NOTIFIED

No committed record this packet binds states who must be served on this route, or how. The office that answers it is the clerk's office of the Mississippi intervention court that certified completion and entered the dismissal.

WHEN TO STOP AND GET HELP INSTEAD

- a sentence was imposed at your plea - the committed contract records that those matters belong on the automatic branch, not this one;
- the matter involves implied consent, which the committed contract records as excluded from this route;
- completion was not certified by the court, or requirements remain outstanding;
- fees were neither paid nor waived, which the committed contract records as a fact this route must collect;
- any immigration question is involved.

Route:

obligation:runtime-only:MS:intervention-court-dismissal-only-nonconviction-expungement-99-19-71-4